

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 10, 2026 AT 8:30 A.M.**

5. M-CV-0097627 SFC PROMENADE PARK INVEST v. CERVANTES, NATALIE

This tentative ruling is issued by **the Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard on **Tuesday, July 14, at 8:30 a.m., in Department 32 before the Honorable Trisha J. Hirashima**.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Motion to Quash Service of Summons

Defendants move to quash service of summons. On a prior date, plaintiff filed declarations of due diligence, and the court granted plaintiff's application allowing posting and mailing of the summons and complaint. Defendants' motion to quash service of summons is denied without prejudice as it is premature. Plaintiff has not yet filed its proofs of service declaring completed service of the summons and complaint. Thus, the court is unable to determine the alleged service was proper.

6. M-CV-0097944 DAY, BLISS v. MAIA, TAYLOR

This tentative ruling is issued by **the Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard on **Tuesday, July 14, at 8:30 a.m., in Department 32 before the Honorable Trisha J. Hirashima**.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Motion to Quash Service of Summons

Defendant moves to quash service of summons. Plaintiff opposes the motion.

Plaintiff's request for judicial notice is granted.

Background

On December 1, 2025, defendant entered into a written tenancy agreement with plaintiff. Pursuant to the parties' agreement, defendant agreed to rent "room 2" within the subject property for a term of six (6) months. Pursuant to the lease

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agreement, and documents thereto, the monthly base rent payment for the lease of the subject property was \$850.00 per month. (See Pl. Compl. ¶ 6.)

On January 26, 2026, plaintiff served upon defendant, and all other adult occupants in possession, a written document entitled “NOTICE OF TERMINATION OF TENANCY NOTICE OF NON-RENEWAL/NOTICE TO VACATE,” providing defendant several months advance notification that his tenancy would not be renewed and the tenancy would cease, effectively, at the end of the six (6) month term on May 31, 2026. This notice also advised that “[t]he landlord is withdrawing this property from the rental housing market” and stated that “payment of rent for the final month of the tenancy is waived.” (See Pl. Compl. ¶¶ 9-10, Pl. Exhs. 2 & 3.)

Plaintiff alleges defendant remained in possession of the subject property beyond the tenancy period. (See Pl. Compl. ¶¶ 9-10, Pl. Exhs. 2 & 3.) On June 2, 2026, plaintiff commenced this action. See *id.*

Analysis

Defendant makes the following arguments in support of the motion to quash: 1. the tenancy is subject to the Tenant Protection Act; 2. defendant occupied the premises for more than twelve months; 3. plaintiff relied upon a notice of non-renewal rather than a statutory just-cause termination; 4. the complaint inconsistently alleges both an at-fault eviction and a no-fault non-renewal theory; and 5. the complaint therefore fails to state a cause of action for unlawful detainer and is uncertain. (Def. Mot. Quash at 5.)

In defendant’s motion, defendant argues for protection under the Tenant Protection Act as a tenant who has occupied the premises for more than twelve months. However, in defendant’s motion, defendant also states that the tenancy began in December 2025. (Def. Mot. Quash at 2.) Therefore, defendant does not qualify for protection pursuant to California Civil Code section 1946.2 subdivision (a), “[n]otwithstanding any other law, after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy.” Cf. *Sandhu v. Lockheed Missiles & Space Co.* (1994) 26 Cal.App.4th 846, 859 (holding plaintiff’s failure to check the proper box does not preclude bringing suit).

Moreover, plaintiff could rely on a notice of non-renewal under Code Civ. Proc., § 1161:

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A tenant of real property, for a term less than life, or the executor or administrator of the tenant's estate heretofore qualified and now acting or hereafter to be qualified and act, is guilty of unlawful detainer:

When the tenant continues in possession, in person or by subtenant, of the property, or any part thereof, after the expiration of the term for which it is let to the tenant; provided the expiration is of a nondefault nature however brought about without the permission of the landlord, or the successor in estate of the landlord, if applicable; including the case where the person to be removed became the occupant of the premises as a servant, employee, agent, or licensee and the relation of master and servant, or employer and employee, or principal and agent, or licensor and licensee, has been lawfully terminated or the time fixed for occupancy by the agreement between the parties has expired

(Code Civ. Proc. §1161, subd. (1).)

Defendant argues the complaint inconsistently alleges both an at-fault eviction and a no-fault non-renewal theory; and the complaint therefore fails to state a cause of action for unlawful detainer and is uncertain. (Def. Mot. Quash at 5.) As plaintiff alleges sending notice of non-renewal and defendant failed to vacate at the end of the tenancy, this would fall under the "at fault" provision of Code Civ. Proc. §1161, subd. (1), as defendant is alleged to meet the definition of an unlawful detainer.

Based on the foregoing, defendant's motion to quash is denied.